

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cloey Romans	Team: Squad #11	CCRB Case #: 202106605	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 10/20/2021 12:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/20/2023	Precinct: 79
Date/Time CV Reported Fri, 10/22/2021 1:19 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/01/2021 10:39 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Flore Witherspoon	03224	937747	079 PCT
2. PO Rafael Rodriguez	05551	965844	079 PCT
3. PO Christopher Sadasy	26388	965492	079 PCT
4. PO Tahir Popovic	13041	966281	079 PCT
5. PO Angel Valenzuela	15501	966379	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Alexander Bido	00944	965664	079 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Flore Witherspoon	Abuse: Sergeant Flore Witherspoon entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . SGT Flore Witherspoon	Abuse: Sergeant Flore Witherspoon forcibly removed § 87(2)(b) to the hospital.	B . Exonerated
C . PO Angel Valenzuela	Force: Police Officer Angel Valenzuela used a chokehold against § 87(2)(b)	C . Substantiated
D . PO Rafael Rodriguez	Force: Police Officer Rafael Rodriguez used a chokehold against § 87(2)(b)	D . Miscellaneous - Subject Resigned
E . PO Rafael Rodriguez	Force: Police Officer Rafael Rodriguez used physical force against § 87(2)(b)	E . Miscellaneous - Subject Resigned
F . PO Angel Valenzuela	Force: Police Officer Angel Valenzuela used physical force against § 87(2)(b)	F . Exonerated
G . PO Tahir Popovic	Force: Police Officer Tahir Popovic used physical force against § 87(2)(b)	G . Exonerated
H . PO Christopher Sadasy	Force: Police Officer Christopher Sadasy used physical force against § 87(2)(b)	H . Exonerated
I . PO Christopher Sadasy	Abuse: Police Officer Christopher Sadasy refused to provide his name to § 87(2)(b)	I . Substantiated

Case Summary

On October 22, 2021, Sergeant Juned Khan of the 71st Precinct submitted this complaint on behalf of § 87(2)(b) generating log § 87(2)(b). On November 1, 2021, the CCRB received the complaint.

At approximately 12:07 p.m. on October 20, 2021, § 87(2)(b) neighbor, § 87(2)(b) called 911 to report that § 87(2)(b) was “mentally unstable” and harassing him inside their apartment building at § 87(2)(b) Brooklyn. Police Officers Rafael Rodriguez, Angel Valenzuela, Christopher Sadasy, Tahir Popovic, Alexander Bido, and Sergeant Flore Witherspoon of 79th Precinct responded. PO Rodriguez and PO Valenzuela arrived on the scene first and engaged § 87(2)(b) in a conversation in the hallway outside her apartment. Approximately four minutes later, PO Sadasy, PO Popovic, PO Bido, and Sgt. Witherspoon arrived with EMS. Upon observing the additional officers and EMS arrive, § 87(2)(b) immediately attempted to enter her apartment, and Sgt. Witherspoon directed the officers, “Don’t let her go in there.” Sgt. Witherspoon’s directive caused PO Sadasy, PO Popovic, PO Bido, PO Valenzuela, and PO Rodriguez to enter § 87(2)(b) apartment (**Allegation A: Abuse of Authority – Exonerated**). The officers’ entry into § 87(2)(b) apartment allowed for § 87(2)(b) to then be evaluated by EMS (**Allegation B: Abuse of Authority – Exonerated**). Once inside the apartment, PO Rodriguez and PO Valenzuela attempted to remove § 87(2)(b) by pulling the scarf around her neck (**Allegation C: Force – Substantiated, Allegation D: Force – Subject Resigned**). PO Rodriguez, PO Valenzuela, PO Popovic, and PO Sadasy then pulled § 87(2)(b) to the ground and dragged her out of her apartment and into the hallway, where she was handcuffed (**Allegation E: Force – Subject Resigned, Allegations F-H: Force – Exonerated**). Once handcuffed, § 87(2)(b) asked PO Sadasy for his name and what precinct the officers were from, and PO Sadasy responded, “We’re from the 79th, we’re all from the 79th” and did not provide his name (**Allegation I: Abuse of Authority – Substantiated**). § 87(2)(b) was removed to § 87(2)(b) Center § 87(2)(b) § 87(2)(b) had no further police interaction on the incident date and no arrests or summons was issued.

Six BWC videos were yielded in total, one each for PO Valenzuela, PO Rodriguez, Sgt. Witherspoon, PO Bido, PO Sadasy, and PO Popovic.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Flore Witherspoon entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Sergeant Flore Witherspoon forcibly removed § 87(2)(b) to the hospital.

At approximately 11:30 a.m. on October 20, 2022, § 87(2)(b) had a brief conversation with two construction workers who were doing maintenance on an apartment down the hall from § 87(2)(b) which is located at § 87(2)(b) Brooklyn. § 87(2)(b) resides in § 87(2)(b) § 87(2)(b) asked to see the workers’ credentials because she did not recognize them and was familiar with most New York City Housing Authority (NYCHA) employees who serviced her building. The construction workers provided their credentials, which § 87(2)(b) believed were valid, and that was the conclusion of her interaction with the two maintenance workers. § 87(2)(b) neighbor, § 87(2)(b) walked through the hallway on the way to her apartment and observed the interaction § 87(2)(b) had with the two NYCHA employees, but § 87(2)(b) did not have a conversation with § 87(2)(b) or the construction workers herself. § 87(2)(b) lives with her brother, § 87(2)(b) in § 87(2)(b). After § 87(2)(b) conversation with the maintenance workers, she returned to her apartment and stood in the hallway outside her apartment door, which was closed. § 87(2)(b)

observed PO Rodriguez and PO Valenzuela exit the elevator, which was ten feet away from her apartment door, and the officers immediately approached § 87(2)(b). There was no one else in the hallway at this point. § 87(2)(b) and the two officers began speaking about the COVID-19 vaccine, but the officers did not inform § 87(2)(b) why they were there and did not request any information from her. § 87(2)(b) did not believe the officers were there for her and thought that she was engaging in a casual conversation with them. Approximately twenty minutes later, PO Popovic and PO Sadasy arrived on the scene and immediately approached § 87(2)(b). PO Rodriguez, and PO Valenzuela. The four officers formed a semi-circle around § 87(2)(b) whose back was directly in front of her closed apartment door. PO Sadasy asked § 87(2)(b) “Have you seen any suspicious activity in this hallway?” § 87(2)(b) told the officer she hadn’t seen anything suspicious, except for her neighbor, § 87(2)(b) who walks up and down the hallway frequently. The officers asked no follow-up questions and requested no additional information from § 87(2)(b). § 87(2)(b) began speaking with PO Popovic and PO Sadasy about the COVID-19 vaccination mandate. No officer made any verbal command or told § 87(2)(b) why they were on the scene. Approximately three minutes later, PO Bido, Sgt. Witherspoon, and three EMTs exited the elevator with a stretcher and began to approach § 87(2)(b). Upon seeing the additional officers and EMS, § 87(2)(b) said, “Oh, I think it’s my time to go. I’ll see you later” and pushed open the door to her apartment and began backing into it. § 87(2)(b) was unsure why the officers and EMTs were at the location but believed they were there to take her to the hospital because she has previously been forcibly removed to the hospital by the NYPD and FDNY on past occasions. § 87(2)(b) was unable to specify when these prior incidents occurred or how many times she has been removed to the hospital, or the reason. As § 87(2)(b) was backing into her apartment, Sgt. Witherspoon directed the officers, “Don’t let her go in there!” Prior to this, § 87(2)(b) did not speak to any EMS personnel and no officer told § 87(2)(b) why she could not enter her apartment. After Sgt. Witherspoon yelled, “Don’t let her go in there. Don’t let her go in there!” PO Rodriguez, PO Valenzuela, PO Sadasy, PO Popovic, and PO Bido immediately followed § 87(2)(b) into her apartment, completely passing the threshold of § 87(2)(b) apartment door and engaging with § 87(2)(b) in the interior vestibule of her apartment (Board Review 05).

Sgt. Witherspoon received a call from an officer who was at § 87(2)(b) building, requesting she respond for an Emotionally Disturbed Person (EDP). The officer told her that § 87(2)(b) was “banging on their doors with a broomstick” and was “off her medication.” The officer on the scene told Sgt. Witherspoon that § 87(2)(b) was a “safety concern” because she was in the hallway yelling and refused to go to the hospital. Sgt. Witherspoon and PO Bido went to the incident location. Upon exiting the elevator along with the EMS personnel that had been dispatched to the same radio run, Sgt. Witherspoon observed § 87(2)(b) standing in front of her closed apartment door, holding a broom and yelling, surrounded by PO Rodriguez, PO Valenzuela, PO Sadasy, and PO Popovic. Sgt. Witherspoon did not recall what § 87(2)(b) was yelling and could provide no further description of § 87(2)(b) demeanor. § 87(2)(b) made a quick movement to enter her apartment and Sgt. Witherspoon directed the officers, “Don’t let her go in there.” Sgt. Witherspoon confirmed that § 87(2)(b) had not been evaluated by EMS personnel prior to Sgt. Witherspoon issuing the order and the evaluation would not have been possible if § 87(2)(b) had entered her apartment, which was why she directed officers to prevent § 87(2)(b) entry into her apartment (Board Review 08).

BWC video from PO Rodriguez (Board Review 23) and PO Valenzuela (Board Review 24) captures them arriving on the scene while § 87(2)(b) is in the hallway outside her apartment (beginning at the 00:54 time stamp). The officers approach § 87(2)(b) and PO Valenzuela asks § 87(2)(b) if she has seen anymore “loud or disruptive” today, and § 87(2)(b) tells them that she has not. The officers engage in a conversation with § 87(2)(b) and she tells them about a prior police interaction she had several months earlier and then speaks to the officers about the COVID-19 vaccine. § 87(2)(b) is stationary and speaking to the officers in a level tone for the duration of their

conversation. Neither PO Valenzuela nor PO Rodriguez are captured making a phone call or speaking with Sgt. Witherspoon prior to her arrival. Approximately five minutes after PO Valenzuela and PO Rodriguez first arrived, Sgt. Witherspoon, PO Bido, PO Sadasy, PO Popovic, and EMS exit the elevator on § 87(2)(b) floor and approach § 87(2)(b) instantaneously (beginning at the 05:04 time stamp) (Board Reviews 23 and 24). Immediately upon seeing the additional officers and EMS, § 87(2)(b) says, “What the fuck is wrong up here?” and attempts to enter her apartment by backing through her ajar door. PO Rodriguez says, “EMS just wants to talk to you” and a male EMT approaches and says, “Hello.” § 87(2)(b) proceeds into her apartment and Sgt. Witherspoon directs officers, “Guys, don't let her go back in the apartment guys. Get her, get her” (beginning at the 1:19 time stamp) (Board Review 28). PO Rodriguez, PO Valenzuela, PO Sadasy, PO Popovic, and PO Bido then follow § 87(2)(b) into her apartment. EMS did not have the opportunity to evaluate § 87(2)(b) prior to her attempting to enter her apartment.

At 12:07 p.m. on October 20, 2021, a 911 caller asks for police at § 87(2)(b) because their neighbor is “mentally unstable” and is harassing him, his mother, and his sister. The caller says he knows the individual is mentally unstable because she is “off her meds.” The caller does not know what mental condition the individual suffers from and says that she “acts differently when she takes her medication.” When asked if violent, the caller says twice, “I have no idea.” The caller says his neighbor is walking in and out of her apartment currently and was knocking on his door and harassing him. The caller says he does not know if the individual is armed and reports no one is injured. The caller describes his neighbor a black female, 5’11”, named “§ 87(2)(b)” with a heavy build, wearing a white sweatshirt, and blue jeans. § 87(2)(b) is currently in the hallway of the third floor but lives in § 87(2)(b). The caller says his last name is “§ 87(2)(b)” and provides a call back number for himself. The 911 operator connects § 87(2)(b) to an EMS dispatcher who asks § 87(2)(b) further information, at which point § 87(2)(b) tells the dispatcher that § 87(2)(b) has “a history of violence” but he does not expand on what this means (Board Review 12).

The ICAD #§ 87(2)(b) notes that a 911 caller reported their neighbor, “§ 87(2)(b)” is going in and out of her apartment, knocking on doors, is off her medication, and has an unknown mental condition. No weapons or injuries are reported. The 911 caller identifies themselves as “§ 87(2)(b)” and provides a call back number. § 87(2)(b) describes § 87(2)(b) as a black female, mid to late 30s, 5’11”, heavy building, wearing a white sweatshirt, navy blue sweatpants with red trim, and a beige scarf. § 87(2)(b) says that § 87(2)(b) is pacing the § 87(2)(b) Floor of their apartment building. The ICAD notes § 87(2)(b) has a “history of violence.” The assigned is classified as an “EDP,” and officers and an FDNY ambulance are dispatched (Board Review 11).

§ 87(2)(a) – PHL 18(6)

NYPD Patrol Guide 221-13 defines an Emotionally Disturbed Person (EDP) as a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to results in serious injury to himself or others (Board Review 15).

NYPD Patrol Guide 216-07, which details the procedure for AIDED persons, states that when an aided person is placed in care of ambulance or medical personnel, a uniformed members of service concerned shall cooperate with ambulance/hospital personnel in every reasonable manner (Board Review 30).

People v. Doll, 21 N.Y.3d 665 found that the emergency doctrine allows the police to conduct a warrantless residential entry without knowing if a crime had taken place inside. It recognizes that the Constitution is not a barrier to a police officer seeking to help someone in immediate danger, thereby excusing or justifying otherwise impermissible police conduct that is an objectively reasonable response to an apparently exigent situation (Board Review 14).

Prior to § 87(2)(b) attempt to enter her apartment, EMS had not yet evaluated her condition. NYPD and FDNY procedure dictate that § 87(2)(b) needed to be evaluated by EMS because of § 87(2)(b) 911 call, § 87(2)(a) – PHL 18(6) § 87(2)(g) Sgt. Witherspoon directing her officers to enter § 87(2)(b) apartment, so that she could be evaluated by medical personnel § 87(2)(g)

Therefore, it is recommended that **Allegation A** be **Exonerated**.

Sgt. Witherspoon's BWC video captures EMS evaluating § 87(2)(b) after she has been removed from her apartment (beginning at the 2:50 time stamp) (Board Review 28). An EMT informs Sgt. Witherspoon they will be sedating § 87(2)(b) and then the medical personnel remove § 87(2)(b) to an ambulance outside. Sgt. Witherspoon has no further interaction with § 87(2)(b) § 87(2)(g)

Therefore, it is recommended that **Allegation B** be **Exonerated**.

Allegation (C) Force: Police Officer Angel Valenzuela used a chokehold against § 87(2)(b)

Allegation (D) Force: Police Officer Rafael Rodriguez used a chokehold against § 87(2)(b)

After his entry into § 87(2)(b) apartment, PO Rodriguez's BWC video captures him grabbing § 87(2)(b) neck scarf and pulling, attempting to bring her into the hallway via the scarf (beginning at the 5:23 time stamp) (Board Review 23). PO Rodriguez's camera then falls to the floor and no additional footage is captured, though § 87(2)(b) can be heard yelling, "Why are you dragging me out my house?" PO Valenzuela's BWC video captures this initial portion similarly, along with him also grabbing the sweater and scarf around § 87(2)(b) neck and pulling before PO Valenzuela's BWC also falls from his body and does not capture further imagery of the struggle (beginning at the 5:33 time stamp) (Board Review 24).

Once inside § 87(2)(b) apartment, PO Rodriguez placed both his hands on § 87(2)(b) upper arms and pushed her straight back against a wall. § 87(2)(b) was unable to recall the details of what happened next but stated that she ended up on the floor of her apartment, face down, with her hands behind her back. § 87(2)(b) did not recall what she was wearing during the incident and did not recall any specifics regarding her scarf being pulled (Board Review 05).

PO Valenzuela stated when PO Rodriguez told § 87(2)(b) she was going to be evaluated by EMS,

§ 87(2)(b) began backing into her apartment, without saying anything. Simultaneously, Sgt. Witherspoon yelled, “Don’t let her go in there” and “grab her.” PO Valenzuela and PO Rodriguez followed § 87(2)(b) into her apartment and grabbed her, with PO Sadasy and PO Popovic following behind the officers and assisting in the removal. PO Valenzuela denied recalling how he engaged in the removal of § 87(2)(b) but stated a physical struggle ensued and § 87(2)(b) was brought to the ground in the process, then pulled into the hallway. PO Valenzuela denied recalling if he ever grabbed § 87(2)(b) neck scarf. Initially PO Valenzuela denied recalling if PO Rodriguez pulled § 87(2)(b) scarf, but upon review of his own BWC video, PO Valenzuela confirmed that PO Rodriguez did pull § 87(2)(b) scarf while it was around her neck. The video did not refresh PO Valenzuela’s recollection of pulling § 87(2)(b) scarf (Board Review 06).

NYPD Patrol Guide Procedure 221-01 states that a chokehold shall include, but is not limited to, any pressure to the throat or windpipe, which may prevent breathing or reduce intake of air. The Patrol Guide states that officers shall not, under any circumstance, administer a chokehold (Board Review 18).

PO Valenzuela denied recalling if he ever pulled § 87(2)(b) scarf. However, his BWC footage for this incident shows him pulling § 87(2)(b) by her scarf. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be **Substantiated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegations D** be closed as **Subject Resigned**.

Allegation (E) Force: Police Officer Rafael Rodriguez used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer Angel Valenzuela used physical force against § 87(2)(b)

Allegation (G) Force: Police Officer Tahir Popovic used physical force against § 87(2)(b)

Allegation (H) Force: Police Officer Christopher Sadasy used physical force against § 87(2)(b)

§ 87(2)(b) believed that PO Rodriguez, PO Valenzuela, PO Popovic, and PO Sadasy forcibly took her to the ground because she heard multiple voices and felt multiple hands on her during the struggle, but § 87(2)(b) could not recall the specific actions these officers took. Once on the ground, § 87(2)(b) felt PO Rodriguez drag her into the hallway by grabbing the handcuffs around her wrists and pulling. § 87(2)(b) did not recall when she was placed into handcuffs or who did so but believed it must have occurred during the struggle. After she was pulled into the hallway, PO Rodriguez and PO Valenzuela helped § 87(2)(b) come to a standing position and placed her onto a stretcher (Board Review 05).

PO Bido’s BWC video captures the struggle in its totality, with him entering behind PO Rodriguez, PO Valenzuela, PO Sadasy, and PO Popovic. PO Bido is positioned on the exterior of the struggle and his BWC captures PO Rodriguez, PO Valenzuela, PO Sadasy, and PO Popovic grabbing § 87(2)(b) pulling her to the ground, and dragging her into the hallway outside her apartment (beginning

at the 01:18 time stamp) (Board Review 26). Further specifics of the struggle are not clear on any officer's BWC video (Board Review 23-28).

PO Valenzuela did not recall any specifics regarding the struggle that ensued with § 87(2)(b) and the officers, stating only that § 87(2)(b) was taken to the ground but he did not recall how (Board Review 06). PO Sadasy and PO Popovic stated that once inside § 87(2)(b) apartment, they grabbed her by her arms, though neither officer recalled where specifically on § 87(2)(b) body they touched her. PO Popovic and PO Sadasy stated that a struggle ensued, at which point § 87(2)(b) was brought to the ground, handcuffed, and removed into the hallway outside of her apartment. Neither officer was able to provide further details regarding the struggle and denied recalling the specifics of how § 87(2)(b) was brought to the ground or brought into the hallway. While neither PO Sadasy nor PO Bido alleged § 87(2)(b) struggling during the takedown and handcuffing, PO Valenzuela stated § 87(2)(b) was "kicking slightly" and PO Popovic alleged that § 87(2)(b) was "kicking, fighting, and spitting." Both officers alleged said resistance occurred after § 87(2)(b) was brought to the ground. § 87(2)(b) was then taken into the hallway outside her apartment, where she sat seated on the floor in rear cuffs (Board Review 07-10).

The investigation determined that PO Bido's involvement in the struggle with § 87(2)(b) was minimal and he did not play an active role in the force which was applied by PO Valenzuela, PO Rodriguez, PO Sadasy, and PO Popovic. PO Bido's testimony that he was not involved in the takedown or removal of § 87(2)(b) is corroborated by BWC video, therefore no allegations of force have been pled against PO Bido.

§ 87(2)(g)

Therefore, it is recommended that **Allegations E** be closed as **Subject Resigned**.

NYPD Patrol Guide Procedure 221-01 states that officers will use only the reasonable force necessary to gain control or custody of a subject. In all circumstances, any application or use of force must be reasonable under the circumstances. If the force used is unreasonable under the circumstances, it will be deemed excessive and in violation of Department policy. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. The Patrol Guide uses an 11-point factor list to determine the use of force: a) the nature and severity of the crime/circumstances, b) actions taken by the subject, c) duration of the action, d) immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, e) whether the subject is actively resisting custody, f) whether the subject is attempting to evade arrest by flight, g) number of subjects in comparison to the number of MOS, h) size, age, and condition of the subject in comparison to MOS, i) subject's violent history, if known, j) presence of hostile crowd or agitators, and k) subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence (Board Review 18).

It is undisputed that § 87(2)(b) was brought to the ground during a struggle with PO Valenzuela, PO Rodriguez, PO Popovic, and PO Sadasy. BWC video and officer testimony corroborates that this occurrence was the result of an attempt to remove § 87(2)(b) from her apartment to be evaluated by EMS. § 87(2)(g)

Therefore, it is recommended that **Allegations F, G, and H** be **Exonerated**.

Allegation (I) Abuse of Authority: Police Officer Christopher Sadasy refused to provide his name to § 87(2)(b)

§ 87(2)(b) stated that at an unknown point during the struggle, she asked officers for their names and badge numbers but was ignored. § 87(2)(b) was unable to provide any additional information about who she requested this information from, how they responded, or at what point in the incident it occurred. § 87(2)(b) did not recall at what point during the incident she made this request, stating she had been disoriented from the struggle and did not recall the specifics, but that she did ask officers for their name and shield number at some point before being removed from the scene and taken to § 87(2)(b) Center (Board Review 05).

BWC video from PO Sadasy captures § 87(2)(b) asking, “What’s your name? What precinct are you from?” and PO Sadasy responds, “The 79th. Everybody here is from the 79th” (beginning at the 4:28 time stamp). It is not definitively clear from the BWC video who § 87(2)(b) directs these questions at and she is not captured requesting any officer’s shield number. PO Sadasy does not provide his name to § 87(2)(b) but acknowledges her request for the officers’ command and responds by informing her they are from the 79th Precinct (Board Review 04).

The investigation identified PO Sadasy as the sole subject officer which § 87(2)(b) requested the name of. As § 87(2)(b) testified that she requested the name of officers prior to her removal to § 87(2)(b) Center and BWC video captures the totality of officers’ interaction with § 87(2)(b) on the scene, prior to her removal to § 87(2)(b) Center, PO Sadasy’s interaction with § 87(2)(b) when she requested his name and command in the hallway of her apartment has been identified by a preponderance of the evidence as the only time § 87(2)(b) requested an officer’s name.

PO Sadasy did not recall if § 87(2)(b) ever asked for his name but that she did ask the officers what command they were from, which PO Sadasy provided to § 87(2)(b) verbally. PO Sadasy denied ever refusing to provide his name to § 87(2)(b) when requested. PO Sadasy was shown his own BWC video during his statement and confirmed that he heard § 87(2)(b) ask, “What’s your name? What precinct are you from?” PO Sadasy denied having an independent recollection of § 87(2)(b) requesting his name but confirmed that he did reply to § 87(2)(b) by telling her “We’re from the 79th.” PO Sadasy stated the reason he did not provide his name was because he believed the question was directed at Sgt. Witherspoon but denied knowing if Sgt. Witherspoon responded to the question or provided her name. PO Sadasy was unable to rectify why he responded to the second portion of § 87(2)(b) question and not the first if the questions were in fact not directed at him. When asked a final time why he did not provide his name to § 87(2)(b) PO Sadasy responded, “I don’t know” (Board Review 10).

NYPD Patrol Guide Procedure 203-09 states that officers must courteously and clearly state their rank, name, shield number, and command, or otherwise provide them, to anyone who requests they do so (Board Review 19).

§ 87(2)(b) testified that she requested officers’ names and shields during the incident and was refused. BWC video corroborates a single occurrence of this allegation, during § 87(2)(b) interaction with PO Sadasy. PO Sadasy confirmed an independent recollection of his response to § 87(2)(b) request for his command, but BWC video confirms this question succeeded a request for his name. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation I** be **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- PO Tahir Popovic has been a member of service for four years and has been a subject in four CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)
[REDACTED]
- PO Christopher Sadasy has been a member of service for four years and has been a subject in four CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
[REDACTED]
- PO Angel Valenzuela has been a member-of-service for four years and this is the first CCRB complaint to which he has been a subject.
- Sgt. Flore Witherspoon has been a member of service for 17 years and has been a subject in three CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)
[REDACTED]
[REDACTED]

Mediation, Civil, and Criminal Histories

- On April 8, 2022, this case was sent to mediation and on May 11, 2022, the case was returned to investigation as the complaint was no longer suitable for mediation.
- As of September 26, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 21).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 11

Investigator: Cloey Romans
Signature

Inv. Cloey Romans
Print Title & Name

12/05/2022
Date

CCRB Case # 202106605

Squad Leader: Edwin Pena IM Edwin Pena 12/05/2022
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date